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Education Law of the People's Republic of China

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(Adopted at the third session of the eighth National People's Congress on March 18, 1995, promulgated by Order No.45 of the President of the People's Republic of China on March 18, 1995 and effective as of September 1, 1995)

Chapter I General Provisions

Article 1 With a view to developing educational undertakings, improving the quality of the whole nationality, accelerating the construction of the socialist material and spiritual civilization and in accordance with the Constitution of the People's Republic of China, the present Law is hereby formulated.

Article 2 The present Law shall be applicable to all kinds of education at all levels within the territory of the People's Republic of China.

Article 3 In developing the socialist educational undertakings, the state shall uphold Marxism-Leninism, Mao Zedong Thought and the theories of

constructing socialism with Chinese characteristics as directives and comply with the basic principles of the Constitution.

Article 4 With education being the foundation for construction of socialist modernization, the state shall give priority to the development of educational undertakings.

The whole society shall pay attention and render support to the educational undertakings.

The whole society shall respect teachers.

Article 5 Education shall serve the construction of socialist modernization, be combined with production and labour and satisfy the needs of training constructors and successors with all round development of morality, intelligence and physique for the socialist cause.

Article 6 The state shall conduct education among education receivers in patriotism, collectivism and socialism as well as in ideals, ethics, discipline, legality, national defence and ethnic unity.

Article 7 Education shall be carried out in the spirit of inheriting and expanding the fine historical and cultural traditions of the Chinese nation and assimilating all the fine achievements of the civilization progress of human beings.

Article 8 Education activities shall be in the benefit of public interests of the state and the society.

The state shall separate education from religion. Any organization or individual may not employ religion to obstruct activities of the state education system.

Article 9 Citizens of the People's Republic of China shall have the right and duty to be educated.

Citizens shall enjoy equal opportunity of education regardless of their ethnic community, race, sex, occupation, property or religious belief etc.

Article 10 The state shall help all ethnic minority regions develop educational undertakings in light of the characteristics and requirements of different ethnic minority groups.

The state shall support the development of educational undertakings in remote border areas and poverty-stricken areas.

The state shall support the development of educational undertakings for disabled people.

Article 11 The state shall fit in with the needs of the development of socialist market economy and the social progress, accelerate educational reform, promote the coordinated development of all kinds of education at all levels, establish and perfect the whole life education system.

The state shall support, encourage and organize scientific research on education, spread the scientific research achievements on education and improve the quality of education.

Article 12 The Chinese language, both oral and written, shall be the basic oral and written language for education in schools and other educational institutions. Schools or other educational institutions which mainly consist of students from ethnic minority groups may use in education the language of the respective ethnic community or the native language commonly adopted in that region.

Schools and other educational institutions shall in their educational activities popularize the nationally common spoken Chinese and the standard written characters.

Article 13 The state shall offer awards to those organizations and individuals who have made distinguished contributions to the development of educational

undertakings.

Article 14 The State Council and all local People's government at different levels shall supervise and manage the educational work according to the principle of management by different levels and division of labour with individual responsibility.

Secondary and lower education shall be managed by the local People's government under the leadership of the State Council.

Higher education shall be managed by the State Council and the People's government of province, autonomous region or municipality directly under the central government.

Article 15 The department of the State Council in charge of educational administration shall be responsible for the educational works of the whole country, make overall plans and coordinate the management of educational undertakings of the whole country.

The departments in charge of educational administration under the local People's government at and above the county level shall be responsible for the educational works within the jurisdiction of the respective administrative region.

Other relevant departments of the People's government at and above the county level shall be responsible for relevant educational works within their terms of reference.

Article 16 The State Council and the local People's government at and above the county level shall report to the People's congress at the respective level or its standing committee on educational works, budgets and financial accounts of educational expenditures and submit to their supervision.

Chapter II Basic Educational System

Article 17 The state shall adopt a school education system including infant school education, primary education, secondary education and higher education.

The state shall establish scientific school system. Regulations in regard to institution of schools and other educational institutions within the school system, forms of education, length of schooling, admissions requirements and educational objectives shall be formulated by the State Council or the departments in charge of educational administration so authorized by the State Council.

Article 18 The state shall adopt a nine-year compulsory education system.

The People's government at different levels shall adopt every measure to ensure that children and juveniles of school age go to school.

Parents and guardians of children and juveniles of school age and relevant social organizations or individuals shall have the duty to ensure that children and juveniles of school age complete the compulsory education of a prescribed length.

Article 19 The state shall adopt a vocational education system and an adult education system.

The People's government at different levels, relevant administrative departments, enterprises and institutions shall adopt measures to develop and ensure for citizens vocational school education or vocational training in various forms.

The state shall encourage the development of adult education in various forms and make sure that citizens receive proper forms of education in politics, economy, culture, science, technology, profession and whole life education as well.

Article 20 The state shall adopt a national examination system of education.

The national educational examinations shall be categorized by the department in charge of educational administration under the State Council and be conducted by institutions authorized by the state to organize examinations.

Article 21 The state shall adopt a schooling credentials system.

Schools and other educational institutions with the approval or consent of the state shall confer schooling credentials or other schooling certificates according to corresponding regulations of the state.

Article 22 The state shall adopt an academic degree system.

The units who confer academic degrees shall confer correspondent titles of academic degree upon people who have achieved certain academic standards or professional standards of technology and award the corresponding academic credentials.

Article 23 The People's government at different levels, self-managed mass organizations at grass-roots level and organizations in enterprises and institutions shall take every measure to develop education to eliminate illiteracy.

Citizens who according to the state statutes have the capacity to receive education intended for elimination of illiteracy shall receive such education.

Article 24 The state shall adopt educational inspection system and educational assessment system for schools and other educational institutions.

Chapter III Schools and Other Educational Institutions

Article 25 The state shall formulate plans for educational development and institute schools and other educational institutions.

The state shall encourage enterprises, institutions, mass associations, other social organizations and private citizens to establish schools and other

educational institutions according to the law.

Any organization or individual may not establish schools or other educational institutions for the purpose of making profit.

Article 26 The establishment of schools or other educational institutions shall be subject to the following requirements of availability:

- (1) organized institution and constitution;
- (2) qualified teachers;
- (3) teaching and learning rooms, facilities and equipment that meet the prescribed standards;
- (4) funds necessary for operation of the school and steady source of capital injection.

Article 27 The establishment, change or termination of a school or other educational institution shall go through procedures of examination, approval, registration or record according to corresponding state stipulations.

Article 28 A school or other educational institution shall exercise following rights:

- (1) autonomous management according to constitution;
- (2) organizing and conducting educational activities;
- (3) recruiting students or other education receivers;
- (4) exercising school administration over education receivers and awarding prize or imposing punishment;

- (5) awarding corresponding schooling credentials upon education receivers;
- (6) employing teachers or other staff and awarding prizes or imposing punishments;
- (7) managing and using facilities and capitals of the own unit;
- (8) refusing to accept any illegal interference into the educational and teaching/learning activities by any organization or individual;
- (9) other rights as provided for by the law and regulations.

The state shall protect schools and other educational institutions from breach of their legitimate rights and interests.

Article 29 Schools and other educational institutions shall perform the following duties:

- (1) obeying the law and regulations;
- (2) implementing the state directives on education, practising the state educational and teaching/learning standards and guaranteeing the quality of teaching and learning;
- (3) safeguarding the legitimate rights and interests of the education receivers, teachers and other staffs;
- (4) providing convenience in a proper manner for education receivers and their guardians to be informed of the receivers' school achievements and other results;
- (5) charging fees according to relevant state prescriptions and making public the charges;
- (6) submitting to supervision according to the law.

Article 30 Schools and other educational institutions sponsors shall decide on the management of schools and other educational institutions according to concerned state regulations.

Headmasters or chiefs of schools and other educational institutions shall be those who are of the Chinese nationality, residing in the territory of China and fit for the conditions prescribed by the state. Their appointment and removal shall be made according to corresponding procedures provided for by the state. Headmasters of schools shall be held responsible for teaching/learning activities and administration.

Schools and other educational institutions shall guarantee the participation of teachers and staffs in democratic management and supervision through the organic form such as the teachers and staffs congress mainly consisting of teachers in accordance with relevant provisions of the state.

Article 31 Schools and other educational institutions who have satisfied conditions for legal persons shall obtain the status of legal persons from the date of approval or registration of legal persons.

Schools and other educational institutions shall enjoy civil rights and interests and bear civil liabilities in civil activities according to the law.

State owned assets of schools and other educational institutions shall be within the ownership of the state.

Enterprises sponsored by schools and other educational institutions shall solely undertake civil liabilities of their own.

Chapter IV Teachers and Other Educational Workers

Article 32 Teachers shall enjoy the rights and interests stipulated by the law, perform duties prescribed by the law and devote to the People's education cause.

Article 33 The state shall protect the legitimate rights and interests of teachers, improve the working and living conditions of teachers and higher the social status of teachers.

The teachers' salaries, remuneration and welfare shall be handled according to the provisions of laws and regulations.

Article 34 The state shall adopt a qualification-based post employment system, improve the quality of teachers and strengthen the development of teachers by way of examination, rewards, cultivation and training.

Article 35 Schools and other educational institutions shall adopt an educational staffs system for their management.

Schools and other educational institutions shall adopt a professional-skills-based posts employment system.

Chapter V Education Receivers

Article 36 Education receivers shall enjoy equal rights in going to school, entering higher school, employment and etc.

Schools and relevant administrative departments shall guarantee that females enjoy equal rights with males in enrolment to school, admission to higher school, employment, conferment of academic degrees and being dispatched to study abroad.

Article 37 The state and society shall provide with different forms of financial aids to children, juveniles and youths who are eligible for schooling but in poor families.

Article 38 The state, society, schools and other educational institutions shall organize education in consideration of the physical and mental characteristics and requirements of disabled people and offer them assistance and convenience.

Article 39 The state, society, schools and other educational institutions shall create conditions for those minor offenders to receive education.

Article 40 Employees shall have the right and duty to receive vocational training and continuous education according to the law.

State organs, enterprises, institutions and other social organizations shall provide conditions and convenience for the learning and training of their own staffs.

Article 41 The state shall encourage schools, other educational institutions and social organizations to create conditions for the whole life education of citizens.

Article 42 Education receivers shall enjoy the following rights and interests according to the law:

- (1) participating in different activities conducted in accordance with educational programme or teaching/learning syllabus; using educational or teaching/learning facilities, equipment or books and materials;
- (2) obtaining scholarships, loans for education and stipends according to relevant state regulations;
- (3) obtaining fair assessment in terms of academic achievements and behaviour; being conferred correspondent credentials of learning and academic degrees upon fulfilment of prescribed school work;
- (4) bringing a complaint to the relevant department in case of refusal to accept a disciplinary action of the school; bringing a complaint or a suit according to the law if the right of personal safety or property has been infringed upon by the school or the teacher;
- (5) other rights and interests as are provided for by the law and regulations.

Article 43 Education receivers shall perform the following duties:

- (1) abiding by laws and regulations;
- (2) observing conduct standards of the school; showing respect to teachers and developing sound ideology, good morals and behaviour habits;
- (3) studying strenuously and fulfilling assigned learning tasks;
- (4) obeying rules of the school or other educational institution to which the education receiver is attached.

Article 44 Administrations of education, physical education and health, schools and other educational institutions shall improve sports and health care facilities and protect the physical and mental health of students.

Chapter VI Education and Society

Article 45 State organs, the army, enterprises, institutions, public organizations and other social organizations and individuals shall create good social environment for the healthy growing-up of children, juveniles and young students.

Article 46 The state shall encourage enterprises, institutions, public organizations and other social organizations to cooperate by various ways with higher education schools, secondary vocational schools in teaching and learning, scientific research, technology development and dissemination.

Enterprises, institutions, public organizations and other social organizations and individuals may support the construction of schools and participate in management through proper forms.

Article 47 State organs, the army, enterprises, institutions and other social organizations shall render assistance and convenience for student's internships

and social practice arranged by schools.

Article 48 Schools and other educational institutions shall take an active part in local public welfare activities under the precondition that normal educational and teaching/learning activities are not affected.

Article 49 Parents or other guardians of minors shall provide necessary conditions for their minor children or other minors under their guardianship to receive education.

Parents or other guardians of minors shall coordinate with schools or the other institutions of education in educating their minor children or children under their guardianship.

Schools and teachers may furnish parents of students with guidance for family education.

Article 50 Libraries, museums, science and technology centres, cultural centres, art galleries, stadiums (gymnasiums) and other public cultural and sports facilities as well as places of historic and cultural interest and revolutionary memorial halls (sites) shall give preferential treatment to teachers and students and provide convenience for educatees to receive education.

Radio and television stations (centres) shall offer educational programs designed to help enhance the ideology and moral character and cultural, scientific and technological qualities of educatees.

Article 51 The State and society shall establish educational facilities for minors to receive after-school education.

Schools and other institutions of education shall coordinate with grassroots autonomous organizations of a mass character, enterprises, institutions and public organizations to strengthen after-school education of minors.

Article 52 The State encourages public organizations, social and cultural institutions, other social organizations and individuals to offer social, cultural and educational activities that are conducive to the sound development in body and mind of educatees.

Chapter VII Education Investment and Safeguards of Conditions

Article 53 The State practises a system wherein government appropriations constitute the main body of the educational appropriations, supplemented by funds raised from a variety of other sources, and the State shall gradually increase its educational input so as to ensure a stable source of education appropriations for State-run schools.

With respect to schools and other institutions of education established and run by enterprises, institutional organizations, public organizations, other social organizations or citizens their operating expenses shall be raised by the respective sponsors; the people's governments at various levels may provide them with appropriate support.

Article 54 The proportion of educational appropriations in gross national products allocated by the State shall gradually rise as the national economy develops and financial revenue increases. The specific proportion and measures for implementation shall be prescribed by the State Council. The proportion of educational appropriations allocated by governments at various levels shall gradually rise along with the development of the national economy.

Article 55 The educational appropriations of the people's governments at various levels shall be listed separately in their fiscal budgets in accordance with the principle of their unified authority over the administrative affairs and the financial affairs.

The people's governments at various levels shall see to it that their appropriations for education shall increase at a faster rate than their regular revenues, that the average expenditure on per enrolled student shall increase

steadily and that the teachers' salaries and the average public expenditure per student shall increase steadily.

Article 56 The State Council and the local people's governments at the county level or above shall establish specific funds for education to be used mainly for assisting outlying and poverty-stricken areas and areas inhabited by minority ethnic groups in enforcing compulsory education there..

Article 57 Taxation authorities shall collect in full the extra charges of education funds, all of which shall be controlled by the administrative departments of education and used mainly for enforcement of compulsory education.

Pursuant to the relevant regulations of the State Council, the people's governments of provinces, autonomous regions and municipalities directly under the central government may decide to levy local extra charges for educational purpose, which shall be used exclusively for education.

The people's governments at the township level shall make arrangements for the collection of the extra charges of education funds incorporated in the overall planning of rural townships, which shall be administered by the administrative departments of education at the county level on behalf of the rural townships or by the people's governments of townships and shall be used for educational undertakings at the township and village levels of their respective townships. The specific proportion of the extra charges of education funds incorporated in the overall planning of rural townships and the specific measures for the administration thereof shall be prescribed by the people's governments of provinces, autonomous regions, or municipalities directly under the Central Government.

Article 58 The State shall adopt preferential measures to encourage and help schools to launch work-study programmes, to provide services for the community and to set up school factories, on condition that this shall not affect normal education and teaching.

Article 59 With the approval of the people's government at the county level, the people's governments of townships, or ethnic minority townships or towns may, on the basis of voluntariness and according to their own capability, raise funds in their own administrative areas for education. Funds thus raised shall be for new buildings for schools providing compulsory education; such funds shall not be used for any other purpose.

Article 60 The State encourages social organizations and individuals both at home and abroad to donate money for education in China.

Article 61 Educational appropriations from the State and contributions and donations offered by social organizations or individuals for education shall be used for education only; they shall not be diverted to any other purposes or withheld.

Article 62 The state encourages the use of loans and other financial means to support the development of educational undertakings.

Article 63 The people's governments at various levels and their administrative departments of education shall strengthen supervision and control over educational appropriations for schools and other institutions of education in order to achieve better results of investment in education.

Article 64 Local people's governments at various levels and their relevant administrative departments shall incorporate capital construction for schools into rural and urban construction plans, make overall arrangements for the land and materials needed for capital construction for schools, and give priority to and adopt preferential policies towards such capital construction in accordance with related regulations set by the State.

Article 65 The people's governments at various levels shall, in accordance with the relevant regulations set by the State, give priority and adopt preferential policies with regard to publication and distribution of textbooks and other printed materials for the purpose of teaching and learning, the production and

supply of teaching and learning instruments and equipment, and the import of books and other printed materials, teaching and learning instruments and equipment for education and scientific research.

Article 66 The people's government at the county level or above shall develop education via satellite television and other modern means for teaching and learning, and the administrative departments concerned shall give such development priority and support.

The State encourages the wide use of modern means in teaching and learning by schools and other institutions of education.

Chapter VIII External Exchange and Cooperation

Article 67 The state encourages foreign exchange and cooperation in education

In conducting foreign exchange and cooperation in education, the principles of independence, equality, mutual benefit and mutual respect shall be adhered to, the laws of the People's Republic of China shall not be violated, and the State sovereignty, and security and the public interests shall not be harmed.

Article 68 To go abroad for study, research, academic exchange or teaching purposes by Chinese citizens within the territory of China shall be handled according to the relevant regulations of the State.

Article 69 Individuals outside the territory of China, who meet the requirements of the State and complete the relevant formalities, may enter China to study, do research, engage in academic exchange, or teach in schools or other institutions of education. Their lawful rights and interests shall be protected by the State.

Article 70 Recognition of the academic degree certificates, educational qualification certificates and other types of education certificates issued by institutions of education outside the territory of China shall be governed by the

international treaties to which China is a signatory party or has acceded, or the relevant regulations of the State.

Chapter IX Legal Responsibility

Article 71 Where in violation of the relevant regulations of the State, the educational appropriations are not examined and allocated as specified in the budget, the people's governments at the corresponding level shall set a time limit for such examination and allocation; if the case is serious, leading persons directly in charge and other persons directly responsible for it shall be given administrative sanctions according to the law.

Where, in violation of the State's fiscal system or financial system, educational appropriations are diverted to other purposes or withheld, the organ at a higher level shall order the return, within a time limit, of the part of the appropriations that is diverted to other purposes or withheld and shall impose, in accordance with the law, administrative sanctions on the leading persons directly in charge and other persons directly responsible for it; if the case constitutes a crime, criminal responsibility shall be investigated according to the law.

Article 72 If anyone engages in gang-fighting or stirs up quarrels, thus disturbing the educational or teaching order of schools or other institutions of education, or destroy school buildings, sites or other property, he shall be given administrative penalties for public security by public security organs; if the case constitutes a crime, the offender shall be investigated for criminal responsibility according to the law. .

If anyone who illegally occupies school buildings, sites or other property, he shall bear civil liabilities according to the law.

Article 73 If anyone knowingly fails to take measures with regard to the school buildings or educational or teaching facilities that are dangerous, thus causing human casualties or heavy losses of property, the leading persons directly in

charge and other persons directly responsible for it shall be investigated for criminal responsibility according to the law.

Article 74 If anyone, in violation of the relevant regulations of the State, collects fees from a school or any other institution of education, he shall be ordered by the government concerned to return the fees thus collected; the leading persons directly in charge and other persons directly responsible for it shall be given administrative sanctions according to the law.

Article 75 If anyone, in violation of the relevant regulations of the State, establishes schools or other institutions of education, such schools or institutions shall be dissolved by the administrative department of education; the unlawful gains, if any, shall be confiscated; the leading persons directly in charge and other persons directly responsible for it shall be given administrative sanctions according to the law.

Article 76 If anyone, in violation of the relevant regulations of the State, enrolls students or other trainees, he shall be ordered by the administrative department of education to send back such students or trainees and to return the fees thus collected; the leading persons directly in charge and other persons directly responsible for it shall be given administrative sanctions according to the law.

Article 77 If anyone practices favouritism or other irregularities in enrolling students or other trainees, he shall be ordered by the relevant administrative department of education to dismiss the students or trainees; the leading persons directly in charge and other persons directly responsible for it shall be given administrative sanctions according to the law; if the case constitutes a crime, the offender shall be investigated for criminal responsibility according to the law.

Article 78 Where schools or other institutions of education, in violation of the relevant regulations of the State, collect fees from educatees, such schools or institutions shall be ordered by the relevant administrative department of education to return the fees thus collected; the leading persons directly in charge

and other persons directly responsible for it shall be given administrative sanctions according to the law.

Article 79 If cheating on a national education examination is found, the relevant administrative department of education shall nullify the examination, and shall, in accordance with the law, impose administrative sanctions on the leading persons directly in charge and other persons directly responsible for it.

A national education examination that is held illegally shall be nullified by the relevant administrative department of education; the unlawful gains, if any, shall be confiscated; the leading persons directly in charge and other persons directly responsible for it shall be given administrative sanctions according to the law.

Article 80 The relevant administrative department of education shall nullify the academic degree certificates, educational qualification certificates or other education certificates that are issued in violation of the provisions of this Law, and shall order their return or confiscation; the unlawful gains, if any, shall be confiscated; if the case is serious, the institution concerned shall be disqualified for conferring the certificates.

Article 81 If anyone, in violation of the provisions of this Law, infringes upon the lawful rights and interests of teachers, educatees or schools or other institutions of education, thus causing losses or damage, he shall bear civil liabilities according to the law.

Chapter X Supplementary Provisions

Article 82 Regulations on education in military schools shall be formulated by the Central Military Commission in accordance with the principles of this Law.

Regulations on education in religious schools shall be formulated by the State Council separately.

Article 83 Measures governing the establishment of schools within the territory of China by organizations or individuals outside China or through their cooperation with organizations or individuals inside China shall be formulated by the State Council.

Article 84 This Law shall go into effect as of September 1, 1995.





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